

3A.1 Interpretation

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > **Part 3A Vulnerable Persons: Participation in Proceedings and Giving Evidence**

Part 3A

Vulnerable Persons: Participation in Proceedings and Giving Evidence

[3.54]

Amendments—Part inserted by [SI 2017/1033](#).

Overview—The decision in *Re M (A Child: Intermediaries)* [2025] EWCA Civ 440, [\[2025\] 1 WLR 4058](#) is the leading authority on the law in this area and its practical application. Key extracts are set out below. The judgment contains an important review of earlier case law ([31]–[46]) including disapproving the guidance about the use of intermediaries given in *West Northamptonshire Council v KA (Intermediaries)* [2024] EWHC 79 (Fam), [\[2024\] 2 FLR 204](#). See also the practice guidance: *The Use of Intermediaries, Lay Advocates and Cognitive Assessments in the Family Court* (updated on 7 November 2025 in light of the decision in *Re M*) at [5.327](#).

The questions the court must ask itself—*Re M* at [16]:

‘In a case where it is relevant, the court will ask itself these questions:

- (1) Is a party or a witness a vulnerable person, having regard to the matters set out in FPR rule 3A.7 and the practice direction? – FPR rule 3A.3.
- (2) If so, is the party's participation in the proceedings (other than by way of giving evidence) likely to be diminished by reason of vulnerability and, if so, is it necessary in order to achieve a fair hearing to make one or more participation directions? – FPR rules 3A.4 and 3A.7 and PD3AA paragraph 1.2.
- (3) Is it likely that the quality of evidence given by a party or witness will be diminished by reason of vulnerability and, if so, is it necessary in order to achieve a fair hearing to make one or more participation directions, as determined at a ground rules hearing? – FPR rules 3A.5 and 3A.7 and PD3AA paragraphs 1.2 and 5.2.’

Is a person vulnerable/is participation in proceedings or the quality of evidence is likely to be diminished as a result—*Re M* at [17]:

‘A decision about whether a person is vulnerable calls for a broad evaluative assessment that takes account of the characteristics of the individual and of the proceedings. If vulnerability exists, it is a gateway to the making of a participation direction, but there is a wide spectrum of vulnerability, and the court will carry forward its assessment of the nature and extent of vulnerability in the individual case into its assessment of whether participation in proceedings or the quality of evidence is likely to be diminished as a result. At that stage, it considers the range of participation directions available to it and determines which ones may be necessary in the circumstances of the individual case.’

Intermediaries: a summary—*Re M* at [7]:

‘In deciding whether and, if so, for what purpose to approve the appointment of an intermediary:

- (1) The court will exercise its judgement within the framework of Part 3A of the Family Procedure Rules 2010 (‘the FPR’) and Practice Direction 3AA. These provisions are not complex, and they require very little elaboration. Their relevant parts appear in the Annex below. By following them, the court will steer a path between the evils of procedural unfairness to a vulnerable person on the one hand, and waste of public resources on the other.

3A.1 Interpretation

- (2) The test for the appointment of an intermediary for any aspect of proceedings is that it is necessary to achieve a fair hearing. Decisions are person-specific and task-specific, and the introduction of other tests upsets the balance struck by the FPR and may draw attention away from the circumstances of the individual case.
- (3) Efficient case management will assist sound decision-making in this area. There must be early identification of vulnerability where it exists. Intermediaries are not experts, but applications for intermediary support should be approached with similar procedural discipline. Different considerations may apply to different elements of the proceedings, and the court should normally require an application notice and/or a draft order that specifies the exact extent of the requested assistance.
- (4) Correctly understood, the court's powers are wide enough to permit it to authorise intermediary assistance for legal meetings outside the court building. However, support that is necessary in the courtroom may be unnecessary in a less pressured setting. Accordingly, the court should give separate consideration to any application of that kind.
- (5) The Family Court is accustomed to using checklists when making procedural and substantive decisions. The mandatory checklist in FPR rule 3A.7 is an essential reference point to ensure that the factors relevant both to the individual and to the proceedings are taken into account. The weight to be given to them is a matter for the court, making a broad and practical assessment.
- (6) An application for an intermediary must have an evidential basis. This will commonly take the form of a cognitive report and, if authorised, an intermediary assessment. Other evidence may come from the social worker or the Children's Guardian. The court can also take account of submissions on behalf of the vulnerable person, and from the other parties, as they may have their own perspectives on the overall fairness of the proceedings. This reflects the collaborative nature of the task of identifying and making adjustments for vulnerability. Whatever the evidence and submissions, it is for the court, and not others, to decide what is necessary to achieve a fair hearing in the individual case.
- (7) When considering whether an intermediary is necessary, the court will consider other available participation directions. In some cases they will be effective to secure fairness, so that an intermediary is unnecessary, or only necessary for a particular occasion, while in other cases they will not. The court is entitled to expect specialist family lawyers to have a good level of understanding of the needs of vulnerable individuals in proceedings and an ability to adapt their communication style. It will consider what can reasonably be expected of the advocates, and in particular of the vulnerable party's advocate in the individual case, bearing in mind that professional continuity may not be guaranteed. Intermediaries should clearly not be appointed on a 'just in case' basis, or because it might make life easier for the court, but equally advocates should not be required to stray beyond their reasonable professional competence to make up for the absence of an intermediary where one is necessary.
- (8) The rules provide that the reasons for a decision to approve or refuse participation directions for a vulnerable person must be recorded in the order. That can be done very briefly, and it is a further useful discipline.
- (9) The approach described should ensure that intermediaries are reliably appointed whenever they are necessary, but not otherwise.'

[3.55]

3A.1 Interpretation

In this Part –

'child' means a person under the age of 18 years whether or not the child is the subject of the proceedings, except that –

3A.1 Interpretation

- (a) in adoption proceedings, it also includes a person who is the subject of proceedings and has attained the age of 18 years before the proceedings are concluded; and
- (b) in proceedings brought under the 1980 Hague Convention or the European Convention, it means a person under the age of 16 years who is the subject of proceedings;

(Omitted)

'intermediary' means a person whose function is to –

- (a) communicate questions put to a witness or party;
- (b) communicate to any person asking such questions the answers given by the witness or party in reply to them; and
- (c) explain such questions or answers so far as is necessary to enable them to be understood by the witness or party or by the person asking such questions;

'live link' means a live television link or other arrangement whereby a witness or party, while absent from the courtroom or other place where the proceedings are being held, is able to see and hear a person there and to be seen and heard by the judge, legal representatives acting in the proceedings and other persons appointed to assist a witness or party;

'mental disorder' has the meaning given in [section 1](#) of the Mental Health Act 1983;

'participation direction' means –

- (a) a general case management direction made for the purpose of assisting a witness or party to give evidence or participate in proceedings; or
- (b) a direction that a witness or party should have the assistance of one or more of the measures in rule 3A.8; and

references to 'quality of evidence' are to its quality in terms of completeness, coherence and accuracy; and for this purpose 'coherence' refers to a witness's or a party's ability in giving evidence to give answers which address the questions put to the witness or the party and which can be understood both individually and collectively.

'relative' has the meaning given by section 63(1) of the 1996 Act;

'victim' includes a child to whom [section 3](#) of the Domestic Abuse Act 2021 applies.

[3.55[1]]

Amendments—[SI 2017/1033](#); [SI 2019/517](#); [SI 2021/875](#).

[3.56]

3A.2 Application of provisions in this Part

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 3A Vulnerable Persons: Participation in Proceedings and Giving Evidence](#)

- (1) Rule 3A.4 does not apply to a party who is a child.
- (2) Rules 3A.3 to 3A.5 do not apply to a party who is a protected party.
- (3) Rules 3A.3 to 3A.5 do not apply to a party or witness who—
 - (a) falls within the assumption set out at rule 3A.2A(1); and
 - (b) has not made a request of a kind referred to in rule 3A.2A(2).

[3.56[1]]

Amendments—Inserted by [SI 2017/1033](#); [SI 2021/875](#).

[3.57]

3A.2A Court's duty to consider making participation directions: victims of domestic abuse

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 3A Vulnerable Persons: Participation in Proceedings and Giving Evidence](#)

Subject to paragraph (2), where it is stated that a party or witness is, or is at risk of being, a victim of domestic abuse carried out by a party, a relative of another party, or a witness in the proceedings, the court must assume that the following matters are diminished—

- (a) the quality of the party's or witness's evidence;
 - (b) in relation to a party, their participation in the proceedings.
- (2) The party or witness concerned can request that the assumption set out in paragraph (1) does not apply to them if they do not wish it to.
- (3) Where the assumption set out in paragraph (1) applies, the court must consider whether it is necessary to make one or more participation directions.

Attention is drawn to Practice Direction 27C, which makes provision for the attendance at hearings, without the need for an order of the court, of Independent Domestic Violence Advisers and Independent Sexual Violence Advisers.

[3.57[1]]

Amendments—Inserted by [SI 2021/875](#). Amended by [SI 2023/61](#).

[3.58]

3A.3 Court's duty to consider vulnerability of other parties or witnesses

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 3A Vulnerable Persons: Participation in Proceedings and Giving Evidence](#)

- (1) When considering the vulnerability of a party or witness as mentioned in rule 3A.4 or 3A.5, the court must have regard in particular to the matters set out in paragraphs (a) to (j) and (m) of rule 3A.7.
- (2) Practice Direction 3AA gives guidance about vulnerability.

[3.58[1]]

Amendments—Inserted by [SI 2017/1033](#); [SI 2021/875](#).

[3.59]

3A.4 Court's duty to consider how a party can participate in the proceedings

The Family Court Practice (The Red Book) > Part III Procedure Rules (FPR and CPR) > SI 2010/2955 Family Procedure Rules 2010 > Part 3A Vulnerable Persons: Participation in Proceedings and Giving Evidence

- (1) The court must consider whether a party's participation in the proceedings (other than by way of giving evidence) is likely to be diminished by reason of vulnerability and, if so, whether it is necessary to make one or more participation directions.
- (2) Before making such participation directions, the court must consider any views expressed by the party about participating in the proceedings.

[3.59[1]]

Amendments—Inserted by [SI 2017/1033](#).

[3.60]

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3A.5 Court's duty to consider how a party or a witness can give evidence

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 3A Vulnerable Persons: Participation in Proceedings and Giving Evidence](#)

- (1) The court must consider whether the quality of evidence given by a party or witness is likely to be diminished by reason of vulnerability and, if so, whether it is necessary to make one or more participation directions.
- (2) Before making such participation directions, the court must consider any views expressed by the party or witness about giving evidence.

[3.60[1]]

Amendments—Inserted by [SI 2017/1033](#).

[3.61]

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3A.6 Protected parties

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 3A Vulnerable Persons: Participation in Proceedings and Giving Evidence](#)

- (1) The court must consider whether it is necessary to make one or more participation directions to assist –
 - (a) the protected party participating in proceedings; or
 - (b) the protected party giving evidence.
- (2) Before making such participation directions, the court must consider any views expressed by the protected party's litigation friend about the protected party's participation in the proceedings or that party giving evidence.

(Part 15 contains rules about representation of a protected party. Practice Direction 15B contains provisions about the ability of a protected party to give evidence.)

[3.61[1]]

Amendments—Inserted by [SI 2017/1033](#).

[3.62]

3A.7 What the court must have regard to

The Family Court Practice (The Red Book) > Part III Procedure Rules (FPR and CPR) > SI 2010/2955 Family Procedure Rules 2010 > Part 3A Vulnerable Persons: Participation in Proceedings and Giving Evidence

When deciding whether to make one or more participation directions the court must have regard in particular to –

- (a) the impact of any actual or perceived intimidation, including any behaviour towards the party or witness on the part of –
 - (i) any other party or other witness to the proceedings or members of the family or associates of that other party or other witness; or
 - (ii) any members of the family of the party or witness;
- (b) whether the party or witness –
 - (i) suffers from mental disorder or otherwise has a significant impairment of intelligence or social functioning;
 - (ii) has a physical disability or suffers from a physical disorder; or
 - (iii) is undergoing medical treatment;
- (c) the nature and extent of the information before the court;
- (d) the issues arising in the proceedings including (but not limited to) any concerns arising in relation to abuse;
- (e) whether a matter is contentious;
- (f) the age, maturity and understanding of the party or witness;
- (g) the social and cultural background and ethnic origins of the party or witness;
- (h) the domestic circumstances and religious beliefs of the party or witness;
- (i) any questions which the court is putting or causing to be put to a witness in accordance with section 31G(6) of the 1984 Act;
- (j) any characteristic of the party or witness which is relevant to the participation direction which may be made;
- (k) whether any measure is available to the court;
- (l) the costs of any available measure; and
- (m) any other matter set out in Practice Direction 3AA.

[3.62[1]]

Amendments—Inserted by [SI 2017/1033](#).

[3.63]

3A.7 What the court must have regard to

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3A.8 Measures

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 3A Vulnerable Persons: Participation in Proceedings and Giving Evidence](#)

- (1) The measures referred to in this Part are those which –
 - (a) prevent a party or witness from seeing another party or witness;
 - (b) allow a party or witness to participate in hearings and give evidence by live link;
 - (c) provide for a party or witness to use a device to help communicate;
 - (d) provide for a party or witness to participate in proceedings with the assistance of an intermediary;
 - (e) provide for a party or witness to be questioned in court with the assistance of an intermediary; or
 - (f) do anything else which is set out in Practice Direction 3AA.
- (2) If the family court makes a direction for a measure which is not available where the court is sitting, it may direct that the court will sit at the nearest or most convenient location where the family court sits and the measure is available.
- (3) If the High Court makes a direction for a measure which is not available where the court is sitting, it may direct that the court will sit at the nearest or most convenient location where the High Court sits and the measure is available.
- (4) Nothing in these rules gives the court power to direct that public funding must be available to provide a measure.
- (5) If a direction for a measure is considered by the court to be necessary but the measure is not available to the court, the court must set out in its order the reasons why the measure is not available.

[3.63[1]]

Amendments—Inserted by [SI 2017/1033](#).

[3.64]

3A.9 When the duties of the court apply and recording reasons for decisions made under this Part

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 3A Vulnerable Persons: Participation in Proceedings and Giving Evidence](#)

- (1) The court's duties under rules 3A.3 to 3A.6 apply as soon as possible after the start of proceedings and continue until the resolution of the proceedings.
- (2) The court must set out its reasons on the court order for –
 - (a) making, varying or revoking directions referred to in this Part; or
 - (b) deciding not to make, vary or revoke directions referred to in this Part, in proceedings that involve a vulnerable person or protected party.

[3.64[1]]

Amendments—Inserted by [SI 2017/1033](#).

[3.65]

3A.10 Application for directions under this Part

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 3A Vulnerable Persons: Participation in Proceedings and Giving Evidence](#)

- (1) An application for directions under this Part may be made on the application form initiating the proceedings or during the proceedings by any person filing an application notice.
- (2) The application form or application notice must contain the matters set out in Practice Direction 3AA.
- (3) Subject to paragraph (2), the Part 18 procedure applies to an application for directions made during the proceedings.
- (4) This rule is subject to any direction of the court.

[3.65[1]]

Amendments—Inserted by [SI 2017/1033](#).

[3.66]

3A.11 Procedure where the court makes directions of its own initiative

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 3A Vulnerable Persons: Participation in Proceedings and Giving Evidence](#)

Where the court proposes to make a participation direction of its own initiative the procedure set out in rule 4.3(2) to (6) applies.

[3.66[1]]

Amendments—Inserted by [SI 2017/1033](#).

[3.67]

3A.12 Functions of officers of the Service and Welsh family proceedings officers

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 3A Vulnerable Persons: Participation in Proceedings and Giving Evidence](#)

Nothing in this Part gives the court power to direct that an officer of the Service or a Welsh family proceedings officer should perform any function beyond the functions conferred upon such officers by any other enactment.

[3.67[1]]

Amendments—Inserted by [SI 2017/1033](#).

[3.68]

3A.13 Prohibition of cross-examination in person under Part 4B of the 1984 Act

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 3A Vulnerable Persons: Participation in Proceedings and Giving Evidence](#)

A practice direction may make provision in relation to the prohibition of cross-examination in person under Part 4B of the 1984 Act.

[3.68[1]]

Amendment—Inserted by [SI 2022/44](#).